



CHAPTER cxx.

An Act to confirm certain Provisional Orders of the Local Government Board relating to the Ashton-under-Lyne and District the Congleton and District and the Wath Swinton and District Joint Hospital Districts. A.D. 1904.

[22nd July 1904.]

WHEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875 :

38 & 39 Vict
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders
in schedule
confirmed.

2. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 12) Act 1904. Short title.

A.D. 1904.

S C H E D U L E.

ASHTON-UNDER-LYNE AND DISTRICT JOINT SMALL-POX HOSPITAL DISTRICT.

*Ashton-
 under-Lyne
 and District
 Order.*

*Provisional Order for forming a United District under Section 279
 of the Public Health Act 1875.*

To the Mayor Aldermen and Burgesses of the Borough of Ashton-under-Lyne ; —

To the Mayor Aldermen and Burgesses of the Borough of Stalybridge ; —

To the Urban District Council of Audenshaw ; —

To the Urban District Council of Hurst ; —

To the Rural District Council of Limehurst ; —

And to all others whom it may concern.

38 & 39 Vict.
 c. 55.

WHEREAS the district councils named in column 2 of the Schedule to this Order are the local authorities within the meaning of the Public Health Act 1875 for the districts named in column 1 of that Schedule :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 279 of the said Act and by any other Statutes in that behalf do hereby order as follows viz.,—

Definitions.

Art. I. In this Order—

- (1) The expression "the appointed day" means the date of the Act of Parliament confirming this Order ;
- (2) The expression "the Schedule" means the Schedule to this Order ;
- (3) The expression "the Act" means the Public Health Act 1875 ;
- (4) The expression "Constituent District" means a district named in column 1 of the Schedule and the expression "Constituent Districts" means all the districts so named ;
- (5) The expression "Constituent Authority" means a district council named in column 2 of the Schedule and the expression "Constituent Authorities" means all the district councils so named ;
- (6) The expression "the Joint Board" means the governing body of the United District to be formed in pursuance of this Order.

Commence-
 ment of Order.

Art. II. This Order shall come into operation from and after the appointed day.

Formation of
 district.

Art. III. The Constituent Districts shall be formed into a United District to be called the Ashton-under-Lyne and District Joint Small-pox

[4 EDW. 7.] *Local Government Board's Provisional* [Ch. cxx.]
Orders Confirmation (No. 12) Act, 1904.

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Hospital District for the purposes of the provision maintenance and management for the use of the inhabitants of the Constituent Districts of a hospital or hospitals for the reception of cases of small-pox.

—
Ashton-under-Lyne and District Order.

Art. IV. The Joint Board shall consist of one ex-officio and seven elective members and shall be called the Ashton-under-Lyne and District Joint Small-pox Hospital Board.

Constitution of governing body.

Art. V. The ex-officio member shall be the person described in column 3 of the Schedule and the elective members shall be elected by the Constituent Authorities.

Ex-officio and elective members.

Art. VI. The number of members of the Joint Board to be elected by each Constituent Authority shall be that set opposite to the name of the Constituent Authority in column 4 of the Schedule and the said members shall be chosen by each Constituent Authority from among their own members.

Number and qualification of elective members.

Art. VII. Such of the provisions of Section 46 of the Local Government Act 1894 as relate to members of councils of districts other than boroughs shall with the necessary modifications apply to members of the Joint Board.

Disqualifications for members.
56 & 57 Vict. c. 73.

Art. VIII. The first election of members of the Joint Board shall take place at a meeting of each Constituent Authority to be held within six weeks from the appointed day or within such further time as the Local Government Board may allow and seven days' previous notice in writing of such meeting shall be given or sent to each member of the Constituent Authority by the clerk to that authority.

Date of first election.

Art. IX. The clerk to each Constituent Authority shall notify in writing to the Local Government Board within seven days after the first election has taken place the names address and occupation of each of the persons elected by the Constituent Authority as a member of the Joint Board.

Notification to Local Government Board of members first elected.

Art. X. An elective member of the Joint Board shall continue in office until the expiration of the period for which he was elected a member of the Joint Board or until he dies or resigns or ceases to be a member of the Constituent Authority as a member of which he was qualified to be elected or otherwise becomes disqualified or until he becomes an ex-officio member of the Joint Board whichever shall first happen :

Tenure of office of members.

Provided always that an elective member shall not continue in office for a longer period than three years without re-election and a member who ceases to hold office by reason of the expiration of his period of office or by reason of his resignation or disqualification or ceasing to be a member of the said Constituent Authority shall subject to the provisions of Article VII. of this Order be re-eligible as a member of the Joint Board if at the time of re-election he is qualified to be so re-elected.

Art. XI. Any vacancy occurring amongst the elective members of the Joint Board by death resignation disqualification or otherwise shall be filled up by the Constituent Authority in whose representation the vacancy happens at a meeting to be held within six weeks of the occurrence of the vacancy or within such further period as the Local Government Board deter-

Supply of vacancies.

A.D. 1904. mine and seven days' previous notice in writing of the said meeting shall
Ashton- be given or sent to each member of the Constituent Authority by the clerk
under-Lyne to that authority and the clerk shall forthwith notify in writing to the clerk
and District to the Joint Board the names address and occupation of the person elected
Order. to fill the said vacancy.

Meetings. Art. XII.—(1) The time and place of holding the first meeting of the
Joint Board shall be fixed by the Local Government Board and the subsequent
ordinary meetings of the Joint Board shall be held at such times and places
as the Joint Board may appoint and at all meetings of the Joint Board three
members shall constitute a quorum.

(2) An extraordinary meeting shall be summoned by the clerk to the
Joint Board when a requisition for that purpose is addressed to him by the
chairman or any three members of the Joint Board.

(3) The requisition shall be in writing and no business other than that
specified in the requisition shall be transacted at such extraordinary meeting.

(4) Notices of all meetings of the Joint Board shall be delivered or sent
by post so as to reach the last known place of abode or business in England
of each member of the Joint Board three clear days before the day of
meeting or at such earlier time as the Joint Board direct.

Committees. (5) The Joint Board may appoint committees consisting of members
of the Joint Board for the exercise of any powers which in the opinion
of the Joint Board can be properly exercised by committees but the acts of
every such committee shall unless otherwise directed by the Joint Board be
submitted to the Joint Board for approval. Provided that a committee so
appointed shall in no case be authorised to borrow money or to issue any
precept for contributions or to enter into any contract and any such com-
mittee shall be subject to the provisions of Part IV. of the First Schedule
to the Local Government Act 1894 so far as they are applicable.

Appointment and remuneration of officers. Art. XIII. The Joint Board shall at their first meeting or at an adjourn-
ment thereof and thereafter as occasion requires appoint a chairman (who
shall subject to the provisions of Articles VII. and X. of this Order continue
chairman for such period not exceeding three years as may be determined
by the Joint Board at the time of his appointment) a treasurer and a clerk
and they may appoint one or more medical officers who shall be registered
medical practitioners and such other officers and servants as they think
requisite. The Joint Board may pay their treasurer clerk medical officers
and other officers and servants such reasonable remuneration as they deem
expedient and every such treasurer clerk medical officer and other officer and
servant shall be removable by the Joint Board at their pleasure.

Mode of admission into hospitals. Art. XIV.—(1) Persons shall be admitted into a hospital provided by
the Joint Board in any of the following modes and not otherwise except with
the consent of the Constituent Authorities viz.,—

- (a) By an order of the Joint Board or of a Constituent Authority ;
- (b) By an order of a medical officer of health of a Constituent Authority ;

[4 EDW. 7.] *Local Government Board's Provisional* [Ch. cxx.]
Orders Confirmation (No. 12) Act, 1904.

(c) By an order of a medical officer appointed by the Joint Board ;

A.D. 1904.

(d) By an order of a justice made under the provisions of Section 124 of the Act with the consent required by that section.

Ashton-under-Lyne and District Order.

(2) If the board of guardians of any Poor Law Union the area whereof is wholly or partly comprised in the Ashton-under-Lyne and District Joint Small-pox Hospital District and the Joint Board agree for the reception into the hospital of persons in the receipt of relief from the said board of guardians any such person may be admitted into the hospital in the manner and on the terms prescribed in the agreement.

Art. XV. For the purposes of this Order the following sections of the Act the Public Health (Officers) Act 1884 and the Public Health (Members and Officers) Act 1885 shall apply and the Joint Board shall have exercise perform and be subject to all the powers rights duties capacities liabilities and obligations of an Urban District Council under the same sections so far as the same are applicable viz.,—

Powers rights duties &c. of Joint Board.

Of the Act :—

Sections 122 123 131 and 132 relating to infectious diseases and hospitals.

Sections 173 and 174 (except sub-section 3) relating to contracts.

Sections 175 176 and 177 relating to purchase sale and letting of lands.

Sections 179 to 181 relating to arbitration.

Sections 192 to 197 and Sections 205 and 206 (except so much of Section 206 as requires the publication in a local newspaper of the annual report) relating to officers provision of offices and conduct of business of local authorities.

Sections 245 247 (as amended by the District Auditors Act 1879) 249 and 250 relating to audit.

Sections 251 253 and 254 and Sections 258 to 263 and 265 to 267 and Section 269 as amended by the Summary Jurisdiction Act 1884 relating to legal proceedings.

Section 298 as to costs of Provisional Orders.

Sections 306 to 309 including miscellaneous provisions.

Of the Public Health (Officers) Act 1884 :—

Section 2.

47 & 48 Vict.
c. 74.

Of the Public Health (Members and Officers) Act 1885 :—

Section 2.

48 & 49 Vict.
c. 53.

Art. XVI. The Joint Board shall for the purpose of the sections of the Act with regard to the "Prevention of epidemic diseases" be a local authority so as to enable the Local Government Board by any regulations under those sections to confer powers and to impose duties on the Joint Board and so far as regards any powers so conferred and any duties so imposed but nothing in this Order contained shall prevent the Local Government Board from imposing any duties by any regulations under the said sections on any Constituent Authority or affect the powers of any Constituent Authority

Power of Local Government Board to make regulations for prevention of epidemic diseases.

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A.D. 1904.

*Ashton-
under-Lyne
and District
Order.*

*Saving hospital
powers of
Constituent
Authorities
till hospital
provided.*

*Notice of pro-
visions as to
recovery of cost
of maintenance.*

*Expenses of
Joint Board.*

so far as the same may be required to be exercised in pursuance of the said regulations.

Art. XVII. Until a hospital provided by the Joint Board is ready for the reception of patients suffering from small-pox nothing in this Order shall take away abridge or prejudicially affect any power vested in any Constituent Authority with regard to the provision of a hospital or hospitals for the reception of cases of small-pox for the use of the inhabitants of their district.

Art. XVIII. A copy of Section 132 of the Act shall be exhibited in a conspicuous place at the principal entrance of the hospital or hospitals.

Art. XIX.—(1) All the expenses incurred by the Joint Board shall be defrayed out of a common fund to which shall be paid the sums received from the Constituent Authorities in respect of the cost of maintenance of patients as herein-after provided and the sums recovered by the Joint Board from or repaid to the Joint Board by or for patients.

(2) To the common fund so far as the same is not provided by the aforesaid payments each Constituent Authority shall contribute in the proportion which the number of inhabitants in their Constituent District bears to the total number of inhabitants of the Constituent Districts and for the purposes of this Article the number of inhabitants shall in each case be the number according to the returns of the last census prior to the issue of precepts of the Joint Board for contributions from the Constituent Authorities.

*Calculation
and payment
of cost of
maintenance
of patients.*

Art. XX.—(1) The cost of maintenance of patients shall be ascertained and paid as follows viz.,—

(a) Within twenty-one days after the Thirty-first day of March and the Thirtieth day of September in each year the Joint Board shall ascertain the average daily cost per patient of the maintenance of patients who have been in the hospital during the previous half-year;

(b) The cost of maintenance of patients shall include all the expenses incurred in and about the maintenance and care of the patients in the hospital and in and about their medical treatment (except so far as the same shall be included in the salaries of the medical officer or medical officers and permanent nurse or nurses) and in and about the clothing conveyance to and from the hospital burials and funerals of patients and shall also include during any day in which a patient or patients may have been in the hospital the remuneration and rations of temporary nurses but shall not include the cost of the repairs to the hospital or to the fittings and furniture thereof or the salaries remuneration or rations of the officers or servants other than temporary nurses.

(2) The clerk to the Joint Board shall within twenty-eight days after the Thirty-first day of March and the Thirtieth day of September in each year transmit to the clerk to each Constituent Authority an account showing in respect of the patients received into the hospital from the district of

[4 EDW. 7.] *Local Government Board's Provisional* [Ch. cxx.]
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such authority after deducting any sums recovered by the Joint Board from A.D. 1904.
or repaid to the Joint Board by or for those patients—

- (a) the name of each patient ;
- (b) the number of days during such half-year each patient has remained in the hospital ; and
- (c) the amount (calculated according to the daily average ascertained as aforesaid) due from the Constituent Authority.

*Ashton-
under-Lyne
and District
Order.*

(3) The amount shown by the said account to be due shall be paid by the Constituent Authority from whose district the said patients have been received into the hospital and shall be included in the precepts which the Joint Board issue to the Constituent Authorities respectively under Section 284 of the Act stating the sums to be contributed by the Constituent Authorities towards the common fund of the district and in case of default shall be recovered in like manner as the sums to be contributed towards the said common fund.

Art. XXI. The accounts of the Joint Board shall at all reasonable times be open to inspection and transcription without payment by any member of a Constituent Authority or by any officer of a Constituent Authority authorised by them for that purpose.

*Inspection of
accounts.*

Art. XXII. A copy of the auditor's report and of the abstract of the accounts of the Joint Board when duly audited shall be sent by the Joint Board to each Constituent Authority.

*Auditor's
report and
abstract of
accounts.*

Art. XXIII. If at any time any new district is formed including the whole or any part of a Constituent District or the boundaries of a Constituent District are otherwise altered or a Constituent District is created or included in a municipal borough or any repeal or alteration is made in the law affecting the United District or the Joint Board or a Constituent District or Constituent Authority in matters touching their relation to the United District or the Joint Board then and in every such case the Local Government Board may by order to be published as they shall direct make such provision as to them seems fit for adapting the provisions of this Order to the alteration so made and to the incidents and consequences thereof and every such order shall have effect as if the terms thereof were inserted in this Order.

*Power of Local
Government
Board to adapt
provisions of
Order on
alterations of
Constituent
Districts.*

Art. XXIV. In case of difference respecting any matter arising out of the provisions of this Order the difference except in any case otherwise herein provided for shall be referred to and be settled by arbitration in the manner provided by the Act and the provisions of the Act shall with the necessary modifications apply as if the Joint Board or a Constituent Authority as the case may be were a party within the meaning of those provisions.

*Settlement of
differences.*

Art. XXV. This Order may be cited as the Ashton-under-Lyne and District Joint Small-pox Hospital Order 1904.

Short title.

[4 Edw. 7.] *Local Government Board's Provisional* [Ch. cxx.]
Orders Confirmation (No. 12) Act, 1904.

- (2) The expression "the Schedule" means the Schedule to this Order; A.D. 1904.
(3) The expression "the Act" means the Public Health Act 1875; *Congleton*
(4) The expression "Constituent District" means a district named in *and District*
column 1 of the Schedule and the expression "Constituent *Order.*
Districts" means all the districts so named;
(5) The expression "Constituent Authority" means a district council
named in column 2 of the Schedule and the expression
"Constituent Authorities" means all the district councils so
named;
(6) The expression "the Joint Board" means the governing body of
the United District to be formed in pursuance of this Order.

Art. II. This Order shall come into operation from and after the appointed day. Commence-
ment of Order.

Art. III. The Constituent Districts shall be formed into a United District to be called the Congleton and District Joint Hospital District for the purposes of the provision maintenance and management for the use of the inhabitants of the Constituent Districts of a hospital or hospitals for the reception of cases of infectious diseases other than small-pox. Formation of
district.

Art. IV. The Joint Board shall consist of two ex-officio and sixteen elective members and shall be called the Congleton and District Joint Hospital Board. Constitution
of governing
body.

Art. V. The ex-officio members shall be the persons described in column 3 of the Schedule and the elective members shall be elected by the Constituent Authorities. Ex-officio and
elective
members.

Art. VI. The number of members of the Joint Board to be elected by each Constituent Authority shall be that set opposite to the name of the Constituent Authority in column 4 of the Schedule and the said members shall be chosen by each Constituent Authority from among their own members. Number and
qualification
of elective
members.

Art. VII. Such of the provisions of Section 46 of the Local Government Act 1894 as relate to members of councils of districts other than boroughs shall with the necessary modifications apply to members of the Joint Board. Disqualifica-
tions for
members.
56 & 57 Vict.
c. 73.

Art. VIII. The first election of members of the Joint Board shall take place at a meeting of each Constituent Authority to be held within six weeks from the appointed day or within such further time as the Local Government Board may allow and seven days' previous notice in writing of such meeting shall be given or sent to each member of the Constituent Authority by the clerk to that authority. Date of first
election.

Art. IX. The clerk to each Constituent Authority shall notify in writing to the Local Government Board within seven days after the first election has taken place the names address and occupation of each of the persons elected by the Constituent Authority as a member of the Joint Board. Notification to
Local Govern-
ment Board of
members first
elected.

[Ch. cxx.] *Local Government Board's Provisional Orders Confirmation (No. 12) Act, 1904.* [4 EDW. 7.]

A.D. 1904.

— —
*Conqleton
and District
Order.*

Tenure of
office of
members.

Art. X. An elective member of the Joint Board shall continue in office until the expiration of the period for which he was elected a member of the Joint Board or until he dies or resigns or ceases to be a member of the Constituent Authority as a member of which he was qualified to be elected or otherwise becomes disqualified or until he becomes an ex-officio member of the Joint Board whichever shall first happen :

Provided always that an elective member shall not continue in office for a longer period than three years without re-election and a member who ceases to hold office by reason of the expiration of his period of office or by reason of his resignation or disqualification or ceasing to be a member of the said Constituent Authority shall subject to the provisions of Article VII. of this Order be re-eligible as a member of the Joint Board if at the time of re-election he is qualified to be so re-elected.

Supply of
vacancies.

Art. XI. Any vacancy occurring amongst the elective members of the Joint Board by death resignation disqualification or otherwise shall be filled up by the Constituent Authority in whose representation the vacancy happens at a meeting to be held within six weeks of the occurrence of the vacancy or within such further period as the Local Government Board determine and seven days' previous notice in writing of the said meeting shall be given or sent to each member of the Constituent Authority by the clerk to that authority and the clerk shall forthwith notify in writing to the clerk to the Joint Board the names address and occupation of the person elected to fill the said vacancy.

Meetings.

Art. XII.—(1) The time and place of holding the first meeting of the Joint Board shall be fixed by the Local Government Board and the subsequent ordinary meetings of the Joint Board shall be held at such times and places as the Joint Board may appoint and at all meetings of the Joint Board five members shall constitute a quorum.

(2) An extraordinary meeting shall be summoned by the clerk to the Joint Board when a requisition for that purpose is addressed to him by the chairman or any three members of the Joint Board.

(3) The requisition shall be in writing and no business other than that specified in the requisition shall be transacted at such extraordinary meeting.

(4) Notices of all meetings of the Joint Board shall be delivered or sent by post so as to reach the last known place of abode or business in England of each member of the Joint Board three clear days before the day of meeting or at such earlier time as the Joint Board direct.

Committees.

(5) The Joint Board may appoint committees consisting of members of the Joint Board for the exercise of any powers which in the opinion of the Joint Board can be properly exercised by committees but the acts of every such committee shall unless otherwise directed by the Joint Board be submitted to the Joint Board for approval Provided that a committee so appointed shall in no case be authorised to borrow money or to issue any precept for contributions or to enter into any contract and any such committee shall be subject to the provisions of Part IV. of the First Schedule to the Local Government Act 1894 so far as they are applicable.

[4 EDW. 7.] *Local Government Board's Provisional* [Ch. cxx.]
Orders Confirmation (No. 12) Act, 1904.

Art. XIII. The Joint Board shall at their first meeting or at an adjournment thereof and thereafter as occasion requires appoint a chairman (who shall subject to the provisions of Articles VII. and X. of this Order continue chairman for such period not exceeding three years as may be determined by the Joint Board at the time of his appointment) a treasurer and a clerk and they may appoint one or more medical officers who shall be registered medical practitioners and such other officers and servants as they think requisite The Joint Board may pay their treasurer clerk medical officers and other officers and servants such reasonable remuneration as they deem expedient and every such treasurer clerk medical officer and other officer and servant shall be removable by the Joint Board at their pleasure.

A.D. 1904.
Congleton and District Order.
 Appointment and remuneration of officers.

Art. XIV.—(1) Persons shall be admitted into a hospital provided by the Joint Board in any of the following modes and not otherwise except with the consent of the Constituent Authorities viz,—

Mode of admission into hospitals.

- (a) By an order of the Joint Board or of a Constituent Authority ;
- (b) By an order of a medical officer of health of a Constituent Authority ;
- (c) By an order of a medical officer appointed by the Joint Board ;
- (d) By an order of a justice made under the provisions of Section 124 of the Act with the consent required by that section.

(2) If the board of guardians of the poor of the Congleton Union or of the Leek Union and the Joint Board agree for the reception into the hospital of persons in the receipt of relief from that board of guardians any such person may be admitted into the hospital in the manner and on the terms prescribed in the agreement.

Art. XV. For the purposes of this Order the following sections of the Act the Public Health (Officers) Act 1884 and the Public Health (Members and Officers) Act 1885 shall apply and the Joint Board shall have exercise perform and be subject to all the powers rights duties capacities liabilities and obligations of an Urban District Council under the same sections so far as the same are applicable viz,—

Powers rights duties &c. of Joint Board.

Of the Act:—

Sections 122 123 131 and 132 relating to infectious diseases and hospitals.

Sections 173 and 174 (except sub-section 3) relating to contracts.

Sections 175 176 and 177 relating to purchase sale and letting of lands.

Sections 179 to 181 relating to arbitration.

Sections 192 to 197 and Sections 205 and 206 (except so much of Section 206 as requires the publication in a local newspaper of the annual report) relating to officers provision of offices and conduct of business of local authorities.

Sections 245 247 (as amended by the District Auditors Act 1879) 249 and 250 relating to audit.

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A.D. 1904.

*Congleton
and District
Order.*

Sections 251 253 and 254 and Sections 258 to 263 and 265 to 267
and Section 269 as amended by the Summary Jurisdiction Act 1884
relating to legal proceedings.

Section 298 as to costs of Provisional Orders.

Sections 306 to 309 including miscellaneous provisions.

47 & 48 Vict.
c. 74.

Of the Public Health (Officers) Act 1884 :—

Section 2.

48 & 49 Vict.
c. 53.

Of the Public Health (Members and Officers) Act 1885 :—

Section 2.

Power of
Local Govern-
ment Board to
make regula-
tions for pre-
vention of epi-
demic diseases.

Art. XVI. The Joint Board shall for the purpose of the sections of
the Act with regard to the "Prevention of epidemic diseases" be a local
authority so as to enable the Local Government Board by any regulations
under those sections to confer powers and to impose duties on the Joint
Board and so far as regards any powers so conferred and any duties so
imposed but nothing in this Order contained shall prevent the Local
Government Board from imposing any duties by any regulations under
the said sections on any Constituent Authority or affect the powers of any
Constituent Authority so far as the same may be required to be exercised
in pursuance of the said regulations.

Saving hospital
powers of
Constituent
Authorities
till hospital
provided.

Art. XVII. Until a hospital provided by the Joint Board is ready for
the reception of patients nothing in this Order shall take away abridge or
prejudicially affect any power vested in any Constituent Authority with regard
to the provision of a hospital or hospitals for the use of the inhabitants of
their district.

Notice of provi-
sions as to
recovery of cost
of maintenance.

Art. XVIII. A copy of Section 132 of the Act shall be exhibited in a
conspicuous place at the principal entrance of the hospital or hospitals.

Expenses of
Joint Board.

Art. XIX.—(1) All the expenses incurred by the Joint Board shall be
defrayed out of a common fund to which shall be paid the sums received
from the Constituent Authorities in respect of the cost of maintenance of
patients as herein-after provided and the sums recovered by the Joint Board
from or repaid to the Joint Board by or for patients.

(2) To the common fund so far as the same is not provided by the
aforesaid payments each Constituent Authority shall contribute in the
proportion which the number of inhabitants in their Constituent District
bears to the total number of inhabitants of the Constituent Districts and
for the purposes of this Article the number of inhabitants shall in each
case be the number according to the returns of the last census prior to the
issue of precepts of the Joint Board for contributions from the Constituent
Authorities.

Calculation
and payment
of cost of
maintenance
of patients.

Art. XX.—(1) The cost of maintenance of patients shall be ascertained
and paid as follows viz,—

(a) Within twenty-one days after the Thirty-first day of March and the
Thirtieth day of September in each year the Joint Board shall
ascertain the average daily cost per patient of the maintenance

of patients who have been in the hospital during the previous half-year ;

A.D. 1904.

*Congleton
and District
Order.*

(b) The cost of maintenance of patients shall include all the expenses incurred in and about the maintenance and care of the patients in the hospital and in and about their medical treatment (except so far as the same shall be included in the salaries of the medical officer or medical officers and permanent nurse or nurses) and in and about the clothing conveyance to and from the hospital burials and funerals of patients and shall also include during any day in which a patient or patients may have been in the hospital the remuneration and rations of temporary nurses but shall not include the cost of the repairs to the hospital or to the fittings and furniture thereof or the salaries remuneration or rations of the officers or servants other than temporary nurses.

(2) The clerk to the Joint Board shall within twenty-eight days after the Thirty-first day of March and the Thirtieth day of September in each year transmit to the clerk to each Constituent Authority an account showing in respect of the patients received into the hospital from the district of such authority after deducting any sums recovered by the Joint Board from or repaid to the Joint Board by or for those patients—

(a) the name of each patient ;

(b) the number of days during such half-year each patient has remained in the hospital ; and

(c) the amount (calculated according to the daily average ascertained as aforesaid) due from the Constituent Authority.

(3) The amount shown by the said account to be due shall be paid by the Constituent Authority from whose district the said patients have been received into the hospital and shall be included in the precepts which the Joint Board issue to the Constituent Authorities respectively under Section 284 of the Act stating the sums to be contributed by the Constituent Authorities towards the common fund of the district and in case of default shall be recovered in like manner as the sums to be contributed towards the said common fund.

Art. XXI. The accounts of the Joint Board shall at all reasonable times be open to inspection and transcription without payment by any member of a Constituent Authority or by any officer of a Constituent Authority authorised by them for that purpose.

*Inspection of
accounts.*

Art. XXII. A copy of the auditor's report and of the abstract of the accounts of the Joint Board when duly audited shall be sent by the Joint Board to each Constituent Authority.

*Auditor's
report and
abstract of
accounts.*

Art. XXIII. If at any time any new district is formed including the whole or any part of a Constituent District or the boundaries of a Constituent District are otherwise altered or a Constituent District is created or included in a municipal borough or any repeal or alteration is made in the

*Power of Local
Government
Board to adapt
provisions of
Order on altera-
tions of Con-
stituent Dis-
tricts.*

[Ch. cxx.] *Local Government Board's Provisional* [4 Edw. 7.]
Orders Confirmation (No. 12) Act, 1904.

A.D. 1904. law affecting the United District or the Joint Board or a Constituent District
Congleton or Constituent Authority in matters touching their relation to the United
and District District or the Joint Board then and in every such case the Local Govern-
Order. ment Board may by order to be published as they shall direct make such
provision as to them seems fit for adapting the provisions of this Order to
the alteration so made and to the incidents and consequences thereof and
every such order shall have effect as if the terms thereof were inserted in
this Order.

Settlement of Art. XXIV. In case of difference respecting any matter arising out of the
differences. provisions of this Order the difference except in any case otherwise herein
provided for shall be referred to and be settled by arbitration in the manner
provided by the Act and the provisions of the Act shall with the necessary
modifications apply as if the Joint Board or a Constituent Authority as the
case may be were a party within the meaning of those provisions.

Short title. Art. XXV. This Order may be cited as the Congleton and District Joint
Hospital Order 1904.

The SCHEDULE above referred to.

1.	2.	3.		4.
Name of District.	Name of District Council.	Ex-officio Member.		Elective Members.
		Number.	Description.	Number.
The Borough of Congleton.	The Mayor Aldermen and Burgesses of the Borough of Congleton acting by the Council.	1	The Chairman for the time being of the Sanitary Committee of the Town Council of the Borough of Congleton.	4
The Urban District of Alsager.	The Urban District Council of Alsager.	—	—	1
The Urban District of Biddulph.	The Urban District Council of Biddulph.	—	—	3
The Urban District of Buglawton.	The Urban District Council of Buglawton.	—	—	1
The Urban District of Sandbach.	The Urban District Council of Sandbach.	—	—	2
The Rural District of Congleton.	The Rural District Council of Congleton.	1	The Chairman of the Rural District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Vice-Chairman of the Rural District Council.	5

Given under the Seal of Office of the Local Government Board this
Third day of May One thousand nine hundred and four.

(L.S.)

WALTER H. LONG President.
S. B. PROVIS Secretary.

WATH SWINTON AND DISTRICT JOINT HOSPITAL
DISTRICT.

A.D. 1904.

Provisional Order for altering Confirming Acts.

*Wath Swinton
and District
Order.*

To the Wath Swinton Greasbrough and North Rotherham Joint Hospital Board ; —

To the Urban District Council of Bolton-upon-Dearne ; —

To the Urban District Council of Greasbrough ; —

To the Urban District Council of Swinton ; —

To the Urban District Council of Wath upon Dearne ; —

To the Rural District Council of Rotherham ; —

And to all others whom it may concern.

WHEREAS by virtue of the Wath and North Rotherham Joint Hospital Order 1895 which was confirmed by the Local Government Board's Provisional Order Confirmation (No. 11) Act 1895 and of the Wath Swinton Greasbrough and North Rotherham Joint Hospital Order 1897 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 4) Act 1897 (each of which Orders and Confirming Acts is herein-after separately referred to as the Order or Confirming Act of the year in which the same was confirmed or passed as the case may be and which Orders and Confirming Acts are herein-after collectively referred to as "the Orders" and "the Confirming Acts") the Urban Districts of Greasbrough Swinton and Wath upon Dearne and the part of the Rural District of Rotherham comprising the contributory places named in column 1 of Schedule B to the Order of 1897 (such Urban Districts and the part of such Rural District being herein-after referred to as "the Constituent Districts") constitute a United District called the Wath Swinton Greasbrough and North Rotherham Joint Hospital District (herein-after referred to as "the United District") of which the governing body is the Wath Swinton Greasbrough and North Rotherham Joint Hospital Board (herein-after referred to as "the Joint Board") ;

58 & 59 Vict.
c. xc.

60 & 61 Vict.
c. lxxix.

And whereas by virtue of the Orders the Joint Board now consists of four ex-officio members and nineteen elective members elected by the several authorities mentioned in the schedules to the Order of 1897 ;

And whereas it is expedient that the Urban District of Bolton-upon-Dearne be included in the United District and that the Orders be altered as herein-after provided :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 297 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Confirming Acts so far as they respectively relate to the Orders shall be altered so that the following provisions shall take effect :—

38 & 39 Vict.
c. 55.

Art. I. The name of the United District shall be altered to the Wath Swinton and District Joint Hospital District and the name of the Joint

Alteration of
name of United
District and
Joint Board.

[Ch. cxx.] *Local Government Board's Provisional* [4 EDW. 7.]
Orders Confirmation (No. 12) Act, 1904.

A.D. 1904.

*Wath Swinton
and District
Order.*

*Extension of
United District.*

Board shall be altered to the Wath Swinton and District Joint Hospital Board.

Art. II. The United District shall be extended so as to include the Urban District of Bolton-upon-Dearne and subject to the provisions of this Order references in the Orders to the Constituent Districts shall be deemed to include the Urban District of Bolton-upon-Dearne and references in the Orders to the Constituent Authorities shall be deemed to include the Urban District Council of Bolton-upon-Dearne.

*Ex-officio and
elective mem-
bers of Joint
Board.*

Art. III. The Order of 1895 as altered by the Order of 1897 shall be further altered so that the Joint Board shall consist of five ex-officio members and twenty-two elective members and the ex-officio members shall be the persons described in column 3 of the schedules hereto and the number of elective members to be elected by each of the Constituent Authorities shall be that set opposite to the name of that authority in column 4 of those schedules.

*First election
of additional
elective mem-
bers of Joint
Board.*

Art. IV. The provisions of Article X. of the Order of 1895 shall apply to the first election by the Urban District Council of Bolton-upon-Dearne of the elective members to represent the Urban District Council on the Joint Board as if the election related to the filling of a vacancy occurring on the day of the date of the Act of Parliament confirming this Order.

Schedules.

Art. V. The Orders shall have effect as if the schedules to this Order were substituted for the schedules to the Order of 1897.

Adjustment.

Art. VI. The Local Government Board upon the application of any of the Constituent Authorities or of the Joint Board may by order adjust as between the Constituent Authorities or as between the Constituent Authorities and the Joint Board any expense or liability incurred by or attaching to the Joint Board before the date of the Act of Parliament confirming this Order or any expense liability or accounts arising out of incidental to connected with or affected by the inclusion of the Urban District of Bolton-upon-Dearne in the United District or any expense liability or accounts in respect of which doubt or difference may arise after the date of the said Act and the Local Government Board may in such order deal with any matters which may be dealt with by an Order or Provisional Order made under Section 304 of the Public Health Act 1875.

Short titles.

Art. VII. This Order may be cited as the Wath Swinton and District Joint Hospital Order 1904 and the Orders and this Order may be cited together as the Wath Swinton and District Joint Hospital Orders 1895 to 1904.

The SCHEDULES above referred to.

A.D. 1904.

*Wath Swinton
and District
Order.*

SCHEDULE A.

1.	2.	3.		4.
Name of District.	Name of Authority.	Ex-officio Members.		Elective Members.
		Number.	Description.	Number.
The Urban District of Bolton-upon-Dearne.	The Urban District Council of Bolton-upon-Dearne.	1	The Chairman of the Urban District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule or in Schedule B then the Vice-Chairman of the Urban District Council.	3
The Urban District of Greasbrough.	The Urban District Council of Greasbrough.	1	The Chairman of the Urban District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule or in Schedule B then the Vice-Chairman of the Urban District Council.	3
The Urban District of Swinton.	The Urban District Council of Swinton.	1	The Chairman of the Urban District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule or in Schedule B then the Vice-Chairman of the Urban District Council.	6
The Urban District of Wath upon Dearne.	The Urban District Council of Wath upon Dearne.	1	The Chairman of the Urban District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule or in Schedule B then the Vice-Chairman of the Urban District Council.	6

SCHEDULE B.

1.	2.	3.		4.
Name of District.	Name of Authority.	Ex-officio Member.		Elective Members.
		Number.	Description.	Number.
The Rural District of Rotherham— Contributory places of Brampton Bierlow Dalton near Rotherham Hooton Roberts Ravenfield Thry- bergh and Wentworth.	The Rural District Council of Rotherham.	1	The Chairman of the Rural District Council or in the event of his being unwilling to act or being one of the ex-officio members described in Schedule A then the Vice-Chairman of the Rural District Council.	4

[Ch. cxx.] *Local Government Board's Provisional* [4 EDW. 7.]
Orders Confirmation (No. 12) Act, 1904.

A.D. 1904.

*Waltham Swinton
and District
Order.*

Given under the Seal of Office of the Local Government Board this
Third day of May One thousand nine hundred and four.

(L.S.)

WALTER H. LONG President.
S. B. PROVIS Secretary.

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